



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 06, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13211
(FOURTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain nitroglycerin solutions in alcohol in UN4GV certified combination packagings. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.102(c)(5), Special Provision N8 in that alternative packaging is authorized.
5. BASIS: This special permit is based on the application of Copperhead Chemical Company, Inc. dated July 25, 2023, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Nitroglycerin, solution in alcohol, <i>with more than 1 percent but not more than 5 percent nitroglycerin</i>	3	UN3064	II

7. SAFETY CONTROL MEASURES: The prescribed packagings are:

a. A combination packaging certified as UN4GV/X14/S/**/USA/+AC1604 manufactured by HAZMATPAK consisting of a double wall fiberboard box with a minimum burst strength of 275 pounds and a minimum ECT of 51 as specified in Wylie Laboratories Test Report Number 44160-02+AC1604. The outer dimensions of the box are approximately 10 1/2" x 10 1/2" x 18". The fiberboard box contains:

(1) A one-gallon HDPE plastic inner bottle. When the bottle is closed, the cap of the bottle must be held securely in place by tape. The closed bottle is placed in a 4-mil polyethylene bag with a minimum of 1 layer of absorbent material bonded to the interior of the bag. The bag is securely closed with a twist or cable tie. The absorbent material must be of sufficient quantity to be capable of absorbing all of the liquid in the package.

(2) The 4GV box must contain sufficient dunnage to ensure the bottle and bag are held securely and there is not excessive movement within the box.

b. A combination packaging certified as UN4GV/X11.3/S/**/USA/+CN1216 manufactured by HAZMATPAK consisting of a double wall fiberboard box with a minimum burst test of 275 pounds as specified in Purple Diamond Packaging LLC. Test Report # 22-2889. The outer dimensions of the box are approximately 10 7/16" x 10 1/2" x 19 11/16". The fiberboard box contains:

(1) A one-gallon HDPE plastic inner bottle. When the bottle is closed, the cap of the bottle must be held securely in place by tape. The closed bottle is placed in a polyethylene bag with a minimum of 1 layer of absorbent material inside the bag. The bag is securely closed with a twist or cable tie. The absorbent material must be of sufficient quantity to be capable of absorbing all the liquid in the package.

(2) The 4GV box must contain sufficient dunnage to ensure the bottle and bag are held securely and there is not excessive movement within the box.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo-only aircraft.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenMoore